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THE MOORE LAW GROUP

A PROFESSIONAL CORPORATION

Visit Us Online
www.collectmoore.com

TOLL FREE: 800.506.2652
Dial 711 for Telecommunication Relay Service

February 18, 2025

Ioelu Atuatasi
11 Broadway Suite 1600
New York NY 10004

Re: Creditor: Citibank, N.A.
COSTCO VISA® CARD
File No. 213504616

Ioelu Atuatasi:

Enclosed is the written Stipulated Agreement incorporating the terms of the agreement reached with our firm. Please sign both the Stipulated Agreement where indicated and return all signed documents to accept this offer. **This stipulated agreement must be signed where indicated and returned to our office within 7 days of receipt. If the written Stipulated Agreement is not signed and timely returned to this office, there is no agreement, and the discussed payment arrangement will be voidable at our option.**

You can mail your payment to The Moore Law Group, P.O. Box 25145, Santa Ana, CA 92799-5145. Please make checks payable to Citibank, N.A.. You can also make payments by phone at (800) 506-2652 or online at www.paymoorelaw.com. You will need your file number 213504616 when making your payments online.

If you have any questions, please contact us at (800) 506-2652.

The Moore Law Group,
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SUPERIOR COURT OF STATE OF CALIFORNIA, COUNTY OF RIVERSIDE
SOUTHWEST JUSTICE CENTER - LIMITED JURISDICTION

Citibank, N.A., Plaintiff, vs. Ioelu Atuatasi, Defendant.	**Case No.** CVME2404196 **STIPULATION FOR (1) ENTRY OF JUDGMENT UPON DEFAULT AND (2) COURT RETENTION OF JURISDICTION UNDER CODE OF CIVIL PROCEDURE §664.6**

Citibank, N.A. ("Plaintiff") and Ioelu Atuatasi ("Defendant") (collectively "the Parties"), stipulate and agree as follows with respect to the above captioned matter and Defendant's account ending XXXXXXXXXXXX7479 ("Account"):

1. The Parties jointly stipulate that this court retain jurisdiction under Code of Civil Procedure §664.6. The Parties further request that this court vacate all future hearings and stay all further action on this case pending completion of the Parties' respective obligations under this Stipulation. If and only if local rules so require, the Parties, by their signatures below, authorize the court to dismiss this case without prejudice with jurisdiction retained. The Parties further agree that this Stipulation may, at Plaintiff's option, be enforced by an independent action. The Parties also stipulate to, and do herby,

voluntarily waive all statutes of limitation and any other legal impediments or bars to this court continuing or resuming jurisdiction of this case including, but not limited to, waiver of rights and provisions of California Code of Civil Procedure §§ 583.160, 583.210, 583.310, 583.360, 583.410, 583.420, and all other provisions of California law regarding dismissal of actions for failure to prosecute or to bring an action to trial within any time limit. Upon Defendant's satisfaction of the terms set forth herein, Plaintiff shall dismiss the pending action with prejudice. If a Judgment has previously been submitted to the Court and the Court has entered said Judgment, if and only if Defendant timely satisfies all requirements of this Stipulation, Plaintiff shall file a Satisfaction of the Judgment.

2. As of February 18, 2025, Defendant is indebted to Plaintiff in the principal sum of $9,607.57 (the "Principal Sum") plus any and all court costs allowable pursuant to the relevant provisions of the California Code of Civil Procedure, plus any first appearance fee not previously paid by Defendant, which will be advanced by Plaintiff. (the "Judgment Amount.")

3. The Parties stipulate to the entry of Judgment in favor of Plaintiff and against Defendant in the Judgment amount. Plaintiff, provided, however, that Plaintiff will not request that Judgment be entered so long as Defendant is not in default of the terms of this Stipulation.

4. **Payment Terms**: Defendant agrees to pay to Plaintiff a total sum of $7,109.61 pursuant to the following payment schedule. ("Scheduled Payments"):

# of Payments	Payment(s) Schedule
1	One payment of $296.23 on or before February 26, 2025.
22	Monthly Payments of $296.23 beginning on or before March 26, 2025 and continuing on or before the same day of the month thereafter.
1	One payment of $296.32 due on or before January 26, 2027.

If Defendant timely makes each of the Scheduled Payments when due, then no further payments will be required, and the account will be deemed to be resolved. However, if Defendant fails to make full and timely payment of any of the Scheduled Payments or if any Scheduled Payment is returned by Defendant's bank for any reason, Plaintiff shall be entitled to have Judgment entered for the Judgment Amount plus any additional costs incurred by Plaintiff in obtaining the Judgment, less a

credit for Scheduled Payments made pursuant to the Stipulation. Time is of the essence with respect to all payments.

5. Acceptance of any one or more late or partial payments by Plaintiff or anyone acting on Plaintiff's behalf shall neither constitute a waiver of, nor in any way prejudice, Plaintiff's right to demand and receive timely payments thereafter or to declare a default hereunder. Plaintiff's failure to declare a default under this Stipulation when so entitled, shall neither constitute a waiver of, nor in any way prejudice, Plaintiff's right to declare a default thereafter.

6. Payments can be made in the following methods:

i. **Online:** *www.paymoorelaw.com* using account number 213504616.

ii. **Phone:** (800) 506-2652

iii. **Mail:** cashier's check, money order, or personal check, payable to Citibank, N.A. notated with Defendant's account number 213504616, and sent to The Moore Law Group, P.O. Box 25145, Santa Ana, CA. 92799-5145, on or before each due date as stated in Paragraph 4.

iv. **Pre-authorized electronic transfer**.

7. Upon a default by Defendant in any payment due to Plaintiff, Plaintiff shall apply to the court for entry of judgment under the terms of this Stipulation. In addition, Defendant waives any right to request or have a trial or new trial, and any right they may have to appeal from any judgment entered pursuant to this Stipulation. If a dismissal without prejudice was entered pursuant to Code of Civil Procedure § 664.6, Plaintiff shell be permitted to set aside said dismissal.

8. This settlement may have tax consequences. Please consult your tax advisor.

9. The Parties hereto agree that a commissioner of the court may hear any proceeding arising out of this Stipulation. The Parties hereto hereby always acknowledge that material hereto they had the opportunity to consult with legal counsel of their own choosing concerning their rights with respect to the form and content of this Stipulation and the advisability of executing the same.

10. This Stipulation may be signed by counterparts by any and all Parties and/or their attorneys and each said counterpart shall be deemed an original. Counsel signing on behalf of a Party represents that they are authorized to so sign under Code of Civil Procedure §664.6.

11. Except as provided in this Stipulation, Defendant hereby releases and forever discharges Plaintiff and its assignees, assignor, predecessors, members, owners, transferees, principals, partners, officers, directors, employees, servants, subsidiaries, parents, successors, agents, attorneys and representatives, from any and all claims, demands, damages, debts, liabilities, obligations, contracts, agreements, causes of action, suits and, of whatever nature, character or description, whether known or unknown, anticipated or unanticipated, which it may have or may hereafter have or claim to have by reason of any matter or omission arising from any cause whatsoever prior to the execution of this Stipulation which arise out of, directly or indirectly, or are in any way connected with or related to the above captioned matter and the Account, including the collection thereof, the tax reporting thereof and the credit reporting of any credit history related thereto.

12. Defendant acknowledges that it is familiar with Section 1542 of the Civil Code of the State of California, which provides as follows ("Section 1542"):

> "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

Defendant waives and relinquishes any rights and benefits which it may have under Section 1542. Defendant acknowledges that it may hereafter discover facts in addition to or different from those which it knows or believes to be true with respect to the subject matter of this Stipulation, but it is its intention to fully and finally and forever settle and release any and all matters, disputes and differences, known or unknown, suspected and unsuspected, which do now exist, may exist or heretofore have existed as to the released parties with respect to the subject matter of this Stipulation. In furtherance of this intention, the releases herein shall be and remain in effect as full and complete general releases notwithstanding the discovery or existence of any such additional or different facts.

Defendant warrants and represents to Plaintiff that the effect and import of the provisions of Section 1542 have been fully explained to it by its attorney or that it has knowingly waived the opportunity to have an attorney do so.

13. Defendant consents to The Moore Law Group, A Professional Corporation, contacting Defendant via email regarding the Stipulation and the performance thereof including, but not limited to, communications regarding missed payments and payments not honored by Defendant's bank. Defendant understands that emails can only be sent to a private email and that emails to a company email are not considered private. To opt out of receiving emails from The Moore Law Group in the future, Defendant should email its name and The Moore Law Group account number, 213504616, to **optout@collectmoore.com**. Please note that if Defendant opts out of receiving emails from The Moore Law Group in the future, The Moore Law Group will be unable to respond via email to any communication Defendant sends to The Moore Law Group.

Dated: _____

_____
Ioelu Atuatasi

Dated: _____

_____
The Moore Law Group, A Professional Corporation
Attorneys for Plaintiff, Citibank, N.A.

Harvey Moore___ Adam Brumage___ Matthew Keim___ Angela Dawson___ Christine Siduguen___ Jason Burrows___ Chan Hsu___ Nicholas Morello___ John Phan___ Linda Doan___ Chinyere A. Abuka___ Jeremy LaForge